

HRMAGIX018 - Maternity Leave Policy

1. Purpose

This policy outlines the maternity leave benefits available to female employees, ensuring adequate support during pregnancy, childbirth, and postnatal recovery, in accordance with the Maternity Benefit Act, 1961. The policy also aims to ensure minimum disruption to business continuity by defining clear procedures and limits on extended absence.

2. Eligibility

- All female employees who have completed at least 80 days of service in the 12 months preceding the expected delivery date are eligible for maternity leave benefits.
 - This applies only to employees on the company's regular payroll. Interns, consultants, or contract-based workers are not eligible under this policy.
 - Employees adopting a child below the age of three months are also eligible for maternity leave benefits.
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3. Duration of Leave

- First two children: Female employees are entitled to 26 weeks of paid maternity leave (8 weeks pre-delivery + 18 weeks post-delivery).
 - Third child and subsequent births: Employees are entitled to 12 weeks of paid maternity leave (maximum 6 weeks before delivery).
 - Miscarriage or medical termination of pregnancy: 6 weeks of paid leave is granted upon submission of medical proof, and 2 weeks for tubectomy (sterilisation) operations.
 - Adoption of a child below three months: 12 weeks of leave from the date of adoption. The employee must submit a legally valid adoption order issued by a competent authority as proof of adoption.
 - Surrogacy: A commissioning mother is eligible for 12 weeks of maternity leave from the date the child is handed over. A commissioning mother shall provide supporting documents, including the surrogacy contract and medical documentation, before benefits are approved.
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4. Leave Application Process

- Employees must submit a formal maternity leave application at least 8 weeks before the expected due date.
 - Failure to comply with this notice period may lead to a delay in processing or rejection of paid leave unless a valid medical emergency is demonstrated.
 - The application must include a medical certificate confirming pregnancy and the expected delivery date.
 - HR will review and confirm the leave approval, notifying the employee of any additional requirements.
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5. Salary and Benefits During Leave

- Employees on maternity leave will receive a full salary for the duration of their leave.
 - Provident Fund (PF), Employee State Insurance (ESI), and medical insurance benefits will continue as per company policy.
 - Employees covered under ESIC (gross earnings $\leq$ ₹21,000 per month) will receive maternity benefits through the ESIC scheme.
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6. Process to Claim ESIC Maternity Benefit

- Employees wishing to claim ESIC Maternity Benefit should follow the prescribed procedure. Detailed instructions will be provided by the HR department.
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7. Additional Provisions

- Employees may avail of additional unpaid leave of up to 6 months, subject to management approval. Such leave shall be purely discretionary, based on written justification by the employee and subject to performance, resource availability, and prior approval of the Management Committee.
- The company is not obligated to approve remote work or part-time hours post-maternity leave. Requests will be reviewed solely on operational feasibility.

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8. Job Protection & Reinstatement

- Employees will be reinstated in their previous position or a similar role with the same pay and benefits upon return.
 - If the employee's prior role is redundant due to restructuring or business change, a similar role will be offered, subject to availability.
 - Dismissal or discrimination based on maternity leave is strictly prohibited.
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9. Compliance & Amendments

- This policy complies with the Maternity Benefit Act, 1961, and any amendments introduced by the Government of India.
 - The policy may be revised periodically based on legal and organisational requirements.
 - Any modifications to the policy will be communicated to employees in advance.
 - Employees may contact the HR department for any queries regarding maternity leave benefits.
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